

LLC vs. Gorilla Cords, LLC 2016-00874703	duty after levy and compelling delivery of levied funds to levying officer. As more fully set forth below, the motion is DENIED. This is the third motion Creditor has brought seeking to compel non-party JP Morgan Chase Bank (Chase) to release funds that allegedly are being held under a notice of levy served on November 8, 2024, regarding account ending 7593. The court denied each of the previous motions due to the failure to serve the judgment debtors or Chase, the reliance on inapplicable authority, and the lack of an adequate evidentiary record to support the requested relief. The court hereby incorporates its October 23, 2025 and May 7, 2026 Minute Orders by reference. In the current motion, Creditor states it has corrected these deficiencies. Indeed, it represents this motion and supporting papers have been served on all judgment debtors and Chase. The court, however, is unable to find any proof of service in its file demonstrating this motion was served on anyone. As such, the service defect that has plagued all prior motions continues. The court further notes, the notice of ruling Creditor served to comply with the court's prior order was not served on all judgment debtors. Specifically, the proof of service attached to that notice states it was served on Chase, Gorilla Cords, and Phuc Le. The proof of service, however, does not identify Jessica Vo as one of the judgment debtors served with the notice. In the current motion, Creditor disclaims any reliance on Code of Civil Procedure section 699.040, but instead now identifies a number of other code sections in support of this motion, including Code of Civil Procedure sections 684.115, 700.140, 700.160, 701.010, 701.020, 701.030, and 703.520. These code sections potentially could provide a basis for granting Creditor some relief (if the motion had been properly served), but Creditor's evidentiary showing continues to be lacking and the specific relief sought does not appear to be authorized. The chronology of events has been presented in the court's prior rulings and will not be restated here. The court, however, will acknowledge the new information Creditor has provided. This includes what appears to potentially be an April 14, 2025 garnishee's memorandum from Chase discussing a writ of execution it received for accounts held by Phuc Le that states the "Account(s) [are] Closed." The April 26, 2025 letter from Chase Creditor previously presented says it relates to a writ of execution against
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	Gorilla Cords, Gorilla Cords, LLC and specifically reference account ending in 7593. Creditor also represents, On November 13, 2025, Chase told its counsel the hold it placed on the \$41,026.89 is indefinite until Chase hears from the court of the sheriff. As with the prior motions, Creditor has not shown a court order for release of funds from the subject account is necessary. Again, the letter (Letter) from Chase states not that it is refusing a levy, but that it will not produce the name on the account without a subpoena. (Velen Decl., Ex. 2.) Creditor has not explained why this statement was made in the letter as the writ of execution does not request the account holder's name. (Velen Decl., Ex. 1.) The garnishee's memorandum Creditor has now produced appears to have been sent prior to the Letter, was not previously produced to the court, and states the account(s) to which it relates was/were closed. It is unclear why the Letter only references judgment debtor "Gorilla Cords, Gorilla Cords LLC," but the garnishee memo only refers to debtor Phuc Le. It also is unclear what if any contact Creditor has had with Chase since November 2025. Moreover, a court order under Code of Civil Procedure section 700.160 is only necessary when a bank account stands in the name of someone other than the judgment debtor. (<i>Grover v. Bay View Bank</i> (2001) 87 Cal.App.4th 452, 456–57.) When the account is held under the name of a judgment debtor alone or together with third persons, an order of the court is unnecessary. (Code Civ. Proc., § 700.160, subd. (b)(1).) Of course, this would require evidence of the names on the account ending 7593, which has never been presented, and Creditor has decided not to serve the subpoena Chase invited to obtain that information. If a third party such as Chase is truly refusing or failing to comply with a valid writ of execution and levy, it appears the proper motion is a motion under section 701.020 to hold the third party liable or force them to show good cause for not complying. (See, e.g., <i>Grayson Services, Inc. v. Wells Fargo Bank</i> (2011) 199 Cal.App.4th 563, 575-576; <i>National Fin'l Lending, LLC v. Superior Court</i> (2013) 222 Cal.App.4th 262, 272.) Of course, any such motion would need to be properly served on Chase, which would be personal service. Based on the foregoing, the motion is again DENIED.
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		Creditor's counsel is ordered to file and serve notice of this ruling on ALL judgment debtors and Chase within five court days of the hearing on this motion.
9.	<i>Santos vs. Crenshaw Manufacturing Inc.</i> 2025-01488879	Before the court is the motion of Waleed Mansour (Mansour) to set aside void abstract of judgment, release judgment lien, and request for attorney fees and costs. As more fully set forth below, the motion is GRANTED as to the request to set aside the abstract of judgment and release judgment lien, but the motion is DENIED as to the request for attorney fees and costs. On or about July 14, 2023, judgment creditor Marivel Santos (Santos) prevailed against judgment debtor Crenshaw Manufacturing Inc. (Crenshaw) before the Workers' Compensation Appeals Board and obtained an award against Crenshaw in the amount of \$194,386.55 plus an award of attorney fees to Santos's counsel in the amount of \$29,158. That award was entered as a judgment in favor of Santos and against Crenshaw on June 3, 2025. On June 18, 2025, Santos filed an abstract of judgment against Crenshaw based on the judgment. That abstract, however, also listed Mansour as an additional judgment debtor even though neither the Workers' Compensation Appeal Board award nor the judgment was against Mansour. On or about March 12, 2026, Mansour's attorney sent Santos's attorney a letter requesting Santos recall the abstract of judgment because it erroneously included Mansour as a judgment debtor when he was not named in either the award or the judgment. Santos's counsel refused, and instead, one week later, filed a motion to add Mansour as a judgment debtor. On May 28, 2026, the court denied that motion because Santos failed to make a sufficient evidentiary showing to support amending the judgment. "An abstract of judgment that asserts the existence of a judgment of a certain monetary amount when there is no such judgment does not comply with Code of Civil Procedure section 674. An abstract of judgment obtained fraudulently and not in compliance with Code of Civil Procedure section 674 because it does not accurately reflect '[t]he amount of the judgment,' may be cancelled or otherwise voided by a court. (<i>Id.</i>, subd. (a)(5); see <i>Sanai v. Saltz</i> (2009) 170 Cal.App.4th 746, 759, fn. 7 [88 Cal.Rptr.3d 673] [an abstract obtained by a plaintiff was 'recalled and quashed' where court found that the